

Court No. - 21

Case :- WRIT - C No. - 15996 of 2024

Petitioner :- Nadeem

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ram Brij Napit

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Learned counsel for respondent Electricity Department prays for and is granted time to obtain instructions.

2. List as fresh on 24.05.2024.

Order Date :- 14.5.2024

Sazia

(Kshitij Shailendra,J.) (Manoj Kumar Gupta, J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Kshitij Shailendra,J.

1. Shri Alok Mishra, learned counsel for the respondent-Electricity Department prays for further time to complete his instructions. Learned State Counsel also prays for time.

2. List as fresh on 02.07.2024.

3. In the meantime, no coercive action shall be taken against the petitioner in pursuance of the impugned recovery certificate.

Order Date :- 24.5.2024

Jyotsana

(Kshitij Shailendra, J.) (Manoj Kumar Gupta, J.)

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Counsel for Petitioner :- Ram Brij Napit

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. Sri Alok Mishra, learned counsel for the respondent- Electricity Department, is in receipt of instructions. He submits that the instant writ petition has been filed by concealment of material facts. He prays for and is granted one week's time to file counter affidavit.

2. List this case as fresh on 11th July, 2024.

3. Interim order, if any, is extended till the next date of listing.

Order Date :- 2.7.2024

Nitika Sri.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

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Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ram Brij Napit

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. None present for the petitioner.

2. List as fresh on 23.7.2024.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 11.7.2024

Jaideep/-

Court No. - 21

Case :- WRIT - C No. - 15996 of 2024

Petitioner :- Nadeem

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Ram Brij Napit

Counsel for Respondent :- Alok Mishra,C.S.C.

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Manish Kumar Nigam,J.

1. Counter affidavit filed on behalf of respondent nos. 4 and 5, is taken on record.
2. Prayer made in the instant petition is for quashing the recovery citation dated 22.2.2024, issued by respondent no. 3, for recovery of electricity dues from the petitioner in a case of theft of electricity.
3. Indisputably, there is an order of final assessment against the petitioner under Section 126 of the Electricity Act, 2003, whereunder he has to pay Rs. 99,842/-. Since the said amount has not been paid by the petitioner, therefore, the impugned recovery certificate has been issued.
4. It appears from the counter affidavit that the petitioner has challenged the assessment order before Permanent Lok Adalat, Aligarh in Case No. 51 of 2023 and the said proceedings are pending. The aforesaid fact has not been disclosed by the petitioner in the writ petition.
5. Learned counsel for the petitioner after making brief submissions, submits that the petitioner is ready to pay the entire outstanding amount in installments and that the electricity connection to the petitioners premises be directed to be restored.
6. Sri Alok Mishra, learned counsel for the respondent-Electricity Department, has no objection in permitting the petitioner to deposit the amount in installments.
7. In respect of restoration of electricity supply, he submits that permanent disconnection was affected on 29.2.2024 and therefore the electricity supply can be restored only upon a proper application being filed by the petitioner as per the procedure prescribed under U.P. Electricity Supply Code, 2005.

8. Having regard to the submissions made and with consent of learned counsel for the parties, we dispose of the instant petition as follows: -

(a) The petitioner will deposit the sum due under the recovery certificate in four equal monthly installments.

(b) The first installment will become due and payable on 15.8.2024, the next one on 15.9.2024 and so on, so that the last installment would become payable on 15.11.2024.

(c) It shall be open for the petitioner to apply for restoration of electricity connection as per the procedure prescribed under the U.P. Electricity Supply Code, 2005.

(d) In case any such application is made, it shall be considered in accordance with law, as soon as the second installment is paid by the petitioner.

(Manish Kumar Nigam, J.) (Manoj Kumar Gupta, J.)

Order Date :- 23.7.2024
Jaideep/-